

1 STATE OF OKLAHOMA

2 2nd Session of the 60th Legislature (2026)

3 COMMITTEE SUBSTITUTE
4 FOR ENGROSSED
5 SENATE BILL NO. 2062

By: Pugh of the Senate

and

6 Osburn of the House

7
8
9 COMMITTEE SUBSTITUTE

10 [prisons and reformatories - delivery - self-
11 reporting - actions - responsibility -
12 reimbursement - effective date]
13

14 ~~BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:~~

15 SECTION 1. AMENDATORY 57 O.S. 2021, Section 95, is
16 amended to read as follows:

17 Section 95. A. Any Except as provided in subsection F of this
18 section, any person convicted of an offense against the laws of this
19 state and sentenced to imprisonment that is not to be served in a
20 county jail shall be transported by the sheriff of the county where
21 the person is sentenced, or transported by a designated
22 representative of the sheriff, to the Department of Corrections at
23 the Lexington Assessment and Reception Center or other location
24 designated by the Director of the Department of Corrections.

1 B. ~~Any~~ Except as provided in subsection F of this section, any
2 person convicted of an offense against the laws of this state and
3 sentenced to imprisonment that is not to be served in a county jail
4 and who is not housed in a county jail shall be transported by the
5 detention center, or transported by a designated representative of
6 the detention center, to the Department of Corrections at the
7 Lexington Assessment and Reception Center or other location
8 designated by the Director of the Department of Corrections.

9 C. The sheriff shall deliver the person to the Department at
10 such center together with:

11 1. A certified copy of the judgment and sentence from the court
12 ordering such imprisonment, unless the judgment and sentence
13 previously has been sent electronically by an authorized clerk of
14 the court;

15 2. A certificate setting forth the number of days served in the
16 county jail after the pronouncement of judgment and rendering of
17 sentence for the offenses committed;

18 3. A copy of any medical, dental, or mental health records of
19 the defendant for conditions reviewed or treated while in the
20 custody of the sheriff;

21 4. Any medication or medical or dental device prescribed for
22 the defendant while in the custody of the sheriff or for a
23 preexisting condition; and
24

1 5. A copy of the presentence investigation report, if a report
2 was prepared.

3 D. The Department of Corrections shall give the sheriff a
4 receipt for each person received into the custody of the Department.
5 The receipt shall be filed by the sheriff in the office of the clerk
6 of the court where the sentence was made.

7 E. The Department of Corrections shall reimburse the
8 transporting agency as follows:

9 1. Mileage from the county sheriff's office to the appropriate
10 reception center and back to the county sheriff's office; and

11 2. Hourly wage reimbursement for the transporting officer for
12 the hours of transport travel and time spent at the reception center
13 based on the transporting officer's normal hourly wage.

14 Reimbursement shall not exceed Thirty Dollars (\$30.00) an hour per
15 officer. Documentation of the officer's hourly wage shall accompany
16 all reimbursement requests to the Department.

17 The Department of Corrections shall have the authority to
18 promulgate rules and forms for the reimbursement procedures provided
19 in this section.

20 The Department of Corrections shall submit a quarterly report to
21 the Chair of the Senate Appropriations Committee and Chair of the
22 House of Representatives Appropriations and Budget Committee.

23 F. Notwithstanding subsections A and B of this section, if the
24 sentencing court orders self-reporting whereby a defendant who poses

1 a low risk to public safety, as determined by factors including, but
2 not limited to, the nature of the committed offense, criminal
3 history, and the defendant's ties to the community, such defendant
4 shall be allowed to self-report to a designated Department of
5 Corrections reception center for commencement of the imprisonment
6 sentence and bypass detention in a county jail. The defendant shall
7 schedule a day and a time within five (5) days of sentencing to be
8 received by the Department and upon arrival, the Department of
9 Corrections shall process any required documentation and conduct
10 initial assessments. The sheriff or detention center personnel
11 shall not be responsible for transportation in such cases and shall
12 not be eligible for reimbursement as provided in subsection E of
13 this section. The defendant shall not receive credit for serving
14 any days outside the county jail or outside the custody of the
15 Department to include time served, deferred reception credits,
16 earned credits, and achievement credits. Due to the defendant never
17 being in custody, the Department shall be directed to contact the
18 county jail if the defendant fails to arrive at the designated
19 reception center and shall not be responsible for the management of
20 locating and placing the defendant into custody.

21 SECTION 2. This act shall become effective November 1, 2026.

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